

Tamil Nadu Land Improvement Schemes (Preservation of Trees in Wind Belt and Shelter Belt) Rules, 1998

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[TAMIL-NADU-LAND-IMPROVEMENT-SCHEMES-PRESERVATION-OF-TREES-IN-WIND-BELT-AND-SHELTER-BELT-RULES-1998 of 1998](#)

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[Tamil Nadu Land Improvement Schemes \(Preservation of Trees in Wind Belt and Shelter Belt\) Rules, 1998](#)

[Published vide Notification No. G.O. Ms. No. 222, Agriculture \(Abc\), dated 13th July 1998 - No. SRO A-52/98](#)

[G.O. Ms. No. 222, Agriculture \(Abc\), dated 13th July 1998 - No. SRO A-52/98. - In exercise of the powers conferred by section 44 of the Tamil Nadu Land Improvement Schemes Act, 1959 \(Tamil Nadu Act 31 of 1959](#)

[\), the Governor of Tamil Nadu hereby makes the following rules:-](#)

[1.](#)

Short title.

(1)

These rules may be called the Tamil Nadu Land Improvement Schemes (Preservation of Trees in Wind Belt and Shelter Belt) Rules, 1998.

This rule shall protect the row of trees planted by the Department of Agricultural Engineering in Patta Lands, or in Poramboke lands or in any other community lands in order to prevent the wind erosion in the wind belt or shelter belt villages specified in the Schedule to these rules.

(2)

These rules shall come into force at once.

2.

Definitions.

- In these rules, unless anything repugnant to the subject or context,-

"Act" means the Tamil Nadu Land Improvement Schemes Act, 1959 (Tamil Nadu Act 31 of 1959

);

"Wind Erosion Village" means the village specified in the Schedule to these rules;

"Wind belt or shelter belt" means the rows of trees such as casurina or eucalyptus, cashew, odai, neem, tamarind, naval, soft wood trees, nelli, jack, gagai or pungam or Konnai, proso fits juliflora and other shrubs planted by Government either in patta lands or in poramboke lands or any other community lands to prevent wind erosion;

"Wind belt or Shelter belt authority" means the Superintending Engineer (Agricultural Engineering) or the Executive Engineer (Agricultural Engineering) having jurisdiction over the wind belt or shelter belt.

3.

Maintenance of Register.

- The wind belt or shelter belt authority shall maintain a map showing the wind belts or shelter belts in each of the wind erosion villages and also a register containing the details of trees raised in such wind belts or shelter belts. A copy of such map and the register shall be furnished to the Village Administrative Officer, Tahsildar and Collector having jurisdiction over that village.

4.

Maintenance of trees.

- Every person, in whose lands, wind belt or shelter belt have been raised on the Government shall maintain all the trees in such wind belt or shelter belt in good condition. He may obtain technical guidance from the wind belt or shelter belt authority in the matter or proper maintenance and upkeep of such trees. He shall not allow any grazing of animals in the wind belt or shelter belt.

5.

Prohibition to cut trees.

- No person, in whose lands, the wind belt or shelter belt have been raised by the Government, shall cut any of the trees in such wind belt or shelter belt without the permission of the Collector:

Provided that such permission is not necessary for cleaning of shrubs, except the shrubs planted by the Government in such wind belt or shelter belt.

Explanation. - "Person" means any individual or group of persons or body corporate who is the owner of the land or tenant or otherwise having possession of the land.

6.

Application for permission to cut trees.

- Every owner or occupier of the patta lands who desires to cut any tree in a wind belt or shelter belt which is eight years old or which is silviculturally matured shall apply to the Collector through the wind belt or shelter belt authority in Form-I appended to these Rules, with a demand draft for Rs. 10 (Rupees ten only) drawn in favour of the authorities concerned and he shall give an undertaking that he would plant another plant of the same species by the side of the trees proposed to be cut and arrange for its proper maintenance for a period of three years.

Explanation. - Silviculturally matured tree means, a tree-

(a)

which is more than two metre in girth at a height of twelve metres, if it is casurina or eucalyptus (Eucalyptus

Tereticomis), Palinirah or soft wood tree;

(b)

which is more than two metre in girth at a height of six metres, if it is cashew (Anacardium occidentale) or odoi;

(c)

which is more than three metres in girth at a height of six metres, if it is Neem (Azadirachta indica), Tamarind (Tamarindus indica), Naval Qam-bolana) and softwood trees, nelli, jack, Gagai (Albizia lebbek) or pimgum (Pongamia glabra) or Konnai (Cassia siamea);

(d)

which is more than half a metre in girth at a height of two metre if it is prosopis juliflora (Lantana camara) and other shrubs.

7.

Inspection.

- On receiving of an application under rule 6, the wind belt or shelter belt authority shall inspect the site and satisfy himself beyond all reasonable doubts as to the age of trees and nature of silvicultural maturity and, then, forward the same to the Collector together with a report in Form II appended to these Rules, on the number of trees which are eligible for cutting as per their age, silvicultural maturity and a certificate to the effect that such cutting of trees will not alter the object for which they have been raised.

8.

Grant of permission.

- The Collector, after taking into consideration the report of the wind belt or shelter belt authority may, either grant permission to cut the trees mentioned in the application or the trees recommended for cutting by the wind belt or shelter belt authority or only such numbers of trees which he consider fit for cutting, subject to the condition that the applicant shall plant another plant of same species by the side of the tree proposed to be cut and maintain it properly for a period of three years, or reject the request in full after recording the reasons therefor.

9.

Appeal.

- Any person aggrieved by the order of the Collector may prefer an appeal to the Government, whose decision thereon shall be final.

10.

Planting of another tree in the place of tree cut down.

- Every person who has been granted permission for cutting a tree in a wind belt or shelter belt shall, before cutting such tree, plant another plant of the same species by the side of the tree proposed to be cut and maintain it properly for a period of three years.

11.

Report of illicit cutting.

- It shall be the duty of the Village Administrative Officer and Village Menials having jurisdiction over the area in which wind belt or shelter belt have been raised to report to the Tahsildar having jurisdiction over that area and to the wind belt or shelter belt authority, any unauthorised felling or cutting of these in any such wind belt or shelter belt.

The officers and servant employed under the scheme shall also report the illicit cutting of trees to his immediate superior for bringing such act to the notice of the wind or shelter belt authority. The wind or shelter belt authority, on receipt of such report, shall forthwith initiate action to impose the penalty as contemplated under section 36 of the Tamil Nadu Land Improvement Schemes Act, 1959 (Tamil Nadu Act

31 of 1959

) through the Court having jurisdiction over the area.

Schedule

[Vide rule 2(b)]

Name of village

Name of the District

Name of the Talk

(1)

(2)

(3)

1. Bodinaickanur

Madurai

Uthamapalayam

2. Melachokkanathapuram

Do.

Do.

3. B. Ammapatti

Do.

Do.

4. Silamalai

Do.

Do.

5. Rasingapuram

Do.

Do.

6. Pettipuram

Do.

Do.

7. Thevaram

Do.

Do.

8. Kombai

Do.

Do.

9. Pannaipuram

Do.

Do.

10. T. Meenachipuram

Do.

Do.

11. Thamminaikkanpatti

Do.

Do.

12. Seepalakottai

Do.

Do.

13. Chinnavalapuram

Do.

Do.

14. Veppampatti

Do.

Do.

15. Jankalpatti

Periakulam

Do.

16. Boomalakundu

Do.

Do.

17. Kottur

Do.

Do.
18. Thappukundu
Do.
Do.
19. Andipatti
Do.
Do.
20. Thirrimanayakkanur
Do.
Do.
21. Shanmugasundarapuram
Do.
Do.
22. G. Usilampatti
Do.
Do.
23. Mettanoothu
Do.
Do.
24. Thepampatti
Do.
Do.
25. Thekkampatti
Do.
Do.
26. Makkundu
Do.
Do.
27. Vellandi
Do.
Do.
28. Kanavaipatti
Do.
Do.
29. Sulapuram
Do.
Usilampatti
30. ThullukuttiNayakanur
Do.
Do.
31. Mallapuram
Do.
Do.
32. Elumalai
Do.
Do.
Sl. No.
Village
Name of District (Before bi-furcation)
Name of Talk
Name of District (After bi-furcation)

- (1)
- (2)
- (3)
- (4)
- (5)
1.
Mela Tiruchendur
Tirunelveli
Tiruchendur
Toothukudi
2.
Manadu Thandapattu
Do.
Do.
Do
3.
Paramankurichi
Do.
Do.
Do
4.
Kuthiraimazhi
Do.
Do.
Do
5.
Chemmarikulam
Do.
Do.
Do
6.
Eliivaraimukki
Do.
Do.
Do
7.
Kayamozhi
Do.
Do.
Do
8.
Meiganapuram
Do.
Do.
Do
9.
Pannamparai
Do.
Sathankulam
Do
- 10.

Arasur

Do.

Do.

Do

11.

Naducakurichi

Do.

Do.

Do

12.

Puthukulam

Do.

Do.

Do

13.

Puthantharuvai

Do.

Do.

Do

14.

Nazerath

Do.

Do.

Do

15.

Sashbinallur

Do.

Do.

Do

16.

Paadukkapattu

Do.

Do.

Do

17.

Namkaimozhi

Do.

Do.

Do.

18.

Kattalankulam

Do.

Toothukudi

Do

19.

Servaikaranmadam

Do.

Do.

Do

20.

Kumarakiri

Do.
Do.
Do
21.
Panakudi
Do.
Nanguneri
Tirunelveli
22.
Perunkudi
Do.
Do.
Do
23.
Karaisuthipudur
Do.
Radhapuram
Do
24.
Karaisuthu Ovari
Do.
Do.
Do
25.
Muthumothammozhi
Do.
Do.
Do
26.
Kuttam
Do.
Do.
Do
27.
Thisaiyanvilai
Do.
Do.
Do
28.
Irukkanthurai
Do.
Do.
Do
29.
Vijayapathi
Do.
Do.
Do
30.
Thiruvambalapuram
Do.

Do.
Do
31.
Shanmugapuram
Do.
Vilathikulam Toothukudi
32.
Soorankhadi
Do.
Do.
Do
33.
Thangamalpuram
Do.
Do.
Do
Sl. No.
Village No.
Name of District(Before bi-furcation)
Name of Talk
Name of District (After bi-furcation)
(1)
(2)
(3)
(4)
(5)
1.
Bodinaickanur
Madurai
Uthamapalayam
Theni
2.
Melachokkanathapuram
Do.
Do.
Do
3.
B. Ammapatti
Do.
Do.
Do
4.
Silamalai
Do.
Do.
Do
5.
Rasingapuram
Do.
Do.
Do

6.
Pettipuram
Do.
Do.
Do
7.
Thevaram
Do.
Do.
Do
8.
Kombai
Do.
Do.
Do
9.
Pannamparai
Do.
Do.
Do
10.
T. Meenachipuram
Do.
Do.
Do
11.
Thamminaikkanpatti
Do.
Do.
Do
12.
Seppalakottai
Do.
Do.
Do
13.
Chinnavalapuram
Do.
Do.
Do
14.
Veppampatti
Do.
Do.
Do
15.
Janakalpatti
Do.
Periakulam
Do
- 16.

Boomalakundu

Do.

Do.

Do

17.

Kottur

Do.

Do.

Theni

18.

Thappukundu

Do.

Do.

Do

19.

Andipatti

Do.

Do.

Do

20.

Thimmanayakkanur

Do.

Do.

Do

21.

Shai ui tugasundarapuram

Do.

Do.

Do

22.

G. Usilampatti

Do.

Do.

Do

23.

Mettanoothu

Do.

Do.

Do

24.

Theppampatti

Do.

Do.

Do

25.

Thekkampatti

Do.

Do.

Do

26.

Makkundu

Do.
Do.
Do
27.
Vellandi
Do.
Do.
Do
28.
Kanavaipatti
Do.
Do.
Do
29.
Sulapuram
Do.
Usilampatti
Madurai
30.
Thullukutti Nayakanur
Do.
Do.
Do
31.
Mallapuram
Do.
Do.
Do.
32.
Elumalai
Do.
Do.
Do

Appendix Form I

(Vide rule 6)

Form of Application

1. Name and address of the applicant.
2. S.No. of the field or fields in which the tree/the trees proposed to be felled stand.
3. Name of the village, taluk and district where the lands on which the trees stand.
4. Proof of ownership of the tree in the tree in the case of lesseess.
5. "Enumeration List" showing the species height and girth.
6. Whether the tree or trees proposed to be felled are regenerated and, if so, their height and girth.

Signature of Applicant.

I declare that the information furnished above is true to the best of my knowledge and belief. I also undertake to comply with the conditions, subject to which the permission may be granted by the Collector.

Signature of Applicant.

Form II

(Vide rule 7)

1. Number of trees proposed to be cut with their silvicultural name.
2. Height and girth of the trees proposed to be cut.
3. Whether new seedlings planted and maintained well in place of each of the old tree proposed to be cut.

4. The height and girth of newly planted trees after three years (Date of planting and three years period should be indicated).
5. Remarks about the stand and the conditions of the newly planted trees.
6. Whether permission may be granted to cut the old tree in the present stage of the newly planted tree and whether it will safeguard the interest of wind erosion problem.

Station:

Date:

Signature of the Inspecting Authority.

Related AI tags, queries and research notes

Translation